

Argument Construction + Introduction to Refutation

Reminders & Agenda

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- Registration: **Past Due**
 - Field Trip Form & Payment due October 6!
 - Judge Training Clinic @ RR: Saturday 8.30 am to 12.30 pm
 - Schoology **Course** Code: K8Z6 - FJBQ - 5CJMT
 - Group Chat - is everyone in ?
 - Drive Folder Tour
 - Structure of a Congress Round: Review
 - Legislation Review (~20 mins)
 - Bill v. Resolution
 - Argument Construction
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Argument Construction

Argument Construction

“Team X will win the basketball game against Team Y because Team X has taller players than Team Y. What this means is that Team X will qualify for the regional championship.”

The most compelling arguments have four things (let's identify them!):

- The “**claim**” is the bottom line conclusion of the argument – namely in this example that “Team X will win the basketball game.”
- The “**warrant/link**” is the reasoning behind the claim. In this example the reasoning is that the taller team will win the basketball game.
- The “**data**” are the facts used to support the warrant. In this example the data is that Team X is taller than Team Y.
- The “**impact**” is the clear explanation of WHY your point matters. In this example, the impact is the importance of Team X qualifying for the regional championship

As opposed to a piece of paper, the audience only has one chance at comprehension so they **must** be labeled and presented clearly. This is known as **signposting**.

Claim

A claim is the main point of an argument, a statement of what the debater intends to prove. The claim must be **directly** communicated. A claim can be communicated as follows:

- The **first/second** reason why we must raise the minimum wage is...
- **Secondly**, raising the minimum wage is a **good idea** because...

The above are examples of good arguments because they include specific language that refers to their stance (aff/neg) and is direct.

Evaluate the claim below: Is it a good claim? Is it a bad claim? If yes, how do we improve it?

- The first reason to affirm this legislation is because of the economy.

Warrant

A warrant is a reason that a claim is true. The warrant is important because it helps the audience start moving down the path of the argument. The warrant should immediately follow the claim and should specify, explain, or justify it.

They should be introduced with language that indicates the speaker is providing a warrant. The most basic way to do this is with a phrase such as

- This is true because . . . or
- This is the case because . . .

Claims without reasoning are very weak arguments. Some might say it isn't even an argument at all. The more warrants, or reasoning, that a claim has the stronger it is generally speaking. If the argument stalls in the first two sentences, or if the argument grows less clear in the second sentence, then the audience will lose interest.

The Claim/Warrant pair sets up what you intend to prove using evidence.

Evidence/Data

Why do we need evidence? Humans are notoriously bad at estimating. Leading polling firms failed to predict Donald Trump's election and the economy was "rock solid" right before the 2008 Recession. Therefore, it is important to support our stance with evidence.

After the initial claim/warrant pair, participants must provide evidence. Evidence can take many forms: **statistics, expert testimony, and specific examples are some of the most common.** Be specific with your evidence. **Numbers are solid,** and the more specific you get, the better your analysis seems. You should not use evidence **more than three years old.** If you cannot find a date, assume the copyright date is the date.

All evidence used is subject to verification. Honesty and integrity are of utmost importance. Falsification or deliberate misuse of evidence may result in suspension of legislators by tournament officials.

Basic Citing Evidence Pt. 1

General formula: [Name of Source] [Date]

- Reliable person: [Person], [Credential], [Date]
 - Robert Reich, former US Secretary of Labor, 2021:
 - Robert Reich, current Professor of Public Policy @ UC Berkeley, 2021:
- Reliable organization: [Organization Name], [Date]
 - New York Times, 2021
 - Check the tournament rules!
 - David Brooks, NYT, 2021

Basic Citing Evidence Pt. 2

General formula: [Name of Source] [Date]

- <2 weeks ago: “2 weeks ago” “10 days ago” “last Saturday” “Yesterday” “1 hour ago”
 - Want to emphasize how recent and theoretically more credible your evidence is
- >2 weeks ago: Month + Year

If you cannot find a date, assume the copyright date is the date!

Evidence Types

- Quantitative vs Qualitative
 - Only 2 real types of evidence to exist
- Quantitative
 - Numbers, something that can be measured
 - If your evidence does not measure something with actual numbers then it's not quantitative
- Qualitative
 - Something that is unquantifiable but is objectively true - something that happened historically, declaration from a government, law, SCOTUS, ruling, etc

Finding Good Evidence/Argument Creation

- Go hand in hand
- Argument Creation:
 - Don't: Go into prep with argument in mind
 - Do: Background research
 - Key words
 - Evidence dumps (on background)
 - Point as to when background research will blend into research organically
- You want evidence that comes from unbiased sources!

Explicit Statistics

Some numbers speak for themselves and are powerful in their own right. Let's look at a few examples:

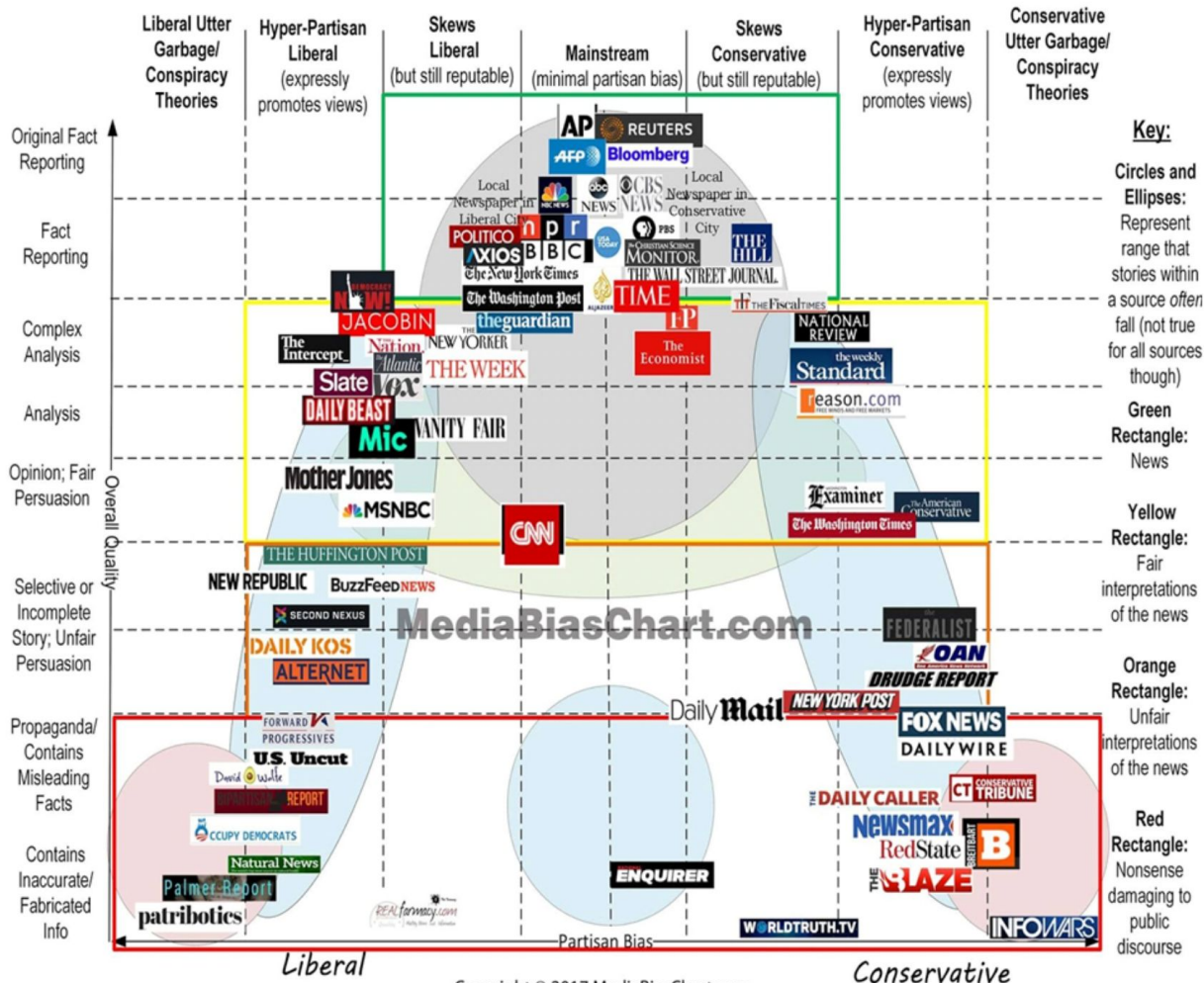
- *An October 17th 2015 Economist article found that refugees help the long term economy of host nations in 19 out of 20 countries studied.* In this instance, it is obvious that refugees consistently help the economy. There is no need to convert to a percentage and say 95% because you lose valuable information by using a percentage: the number of countries studied.
- *A December 13th, 2015 New York Times article found that the Cuban government has demanded \$833 billion dollars from the US government in compensation for economic damages caused by the embargo.* There is no need to enhance this; \$833 billion is clearly a large sum of money. Perhaps you could calculate how many years worth of GDP this is for Cuba to further show how ridiculous this claim is, but that's not strictly necessary.
- *A February 11th, 2016 Harvard study found that of the total 865 encryption products on the market, 63% were located outside of the US.* There's no need to alter this statistic, it came nicely pre-packaged.

Implicit Statistics

Sometimes you need to put the numbers in perspective. This context is directly drawn from a single source. The most common way of putting things in perspective is using a percent change. Let's look at a few examples:

- *We can look to a May 23rd, 2016 Trading Economics report and we see that the value of the Ruble was 5 Rubles/USD in July 2014, and in May 2016 was 10.2 Rubles/USD. That statistic is not very convincing at first and it takes a second to comprehend how bad the inflation was. Instead we can further by saying that “**what this means is that the value of the Ruble dropped by 104% thus cratering the Russian economy.**” That sounds a lot more serious and helps people understand the severity of the economic crisis. By doing a bit of simple math $(5.2/5)$ we come up with a clearer statistic.*
- *An April 27th, 2016 Atlantic article found that in Germany a 440% increase in refugees led to only a 79% increase in total crimes committed by refugees. That's two numbers for people to wrap their head around and a 79% increase in refugee crime still sounds like a lot. We can clarify this by adding that “**the number of crimes committed by refugees was therefore five and a half times less than what the normal population trend increase would indicate.**”*

Sourcing



News/Current Affairs (some require subscription/paid access)

Financial Times (ft.com)

Vox (vox.com)

New York Times (nytimes.com)

Foreign Policy (foreignpolicy.com)

Business Week (businessweek.com)

The Economist (economist.com)

Foreign Affairs (foreignaffairs.com)

Google News (news.google.com)

Washington Post (washingtonpost.com)

National Public Radio - NPR (npr.org)

Time Magazine (time.com)

Al Jazeera (aljazeera.com)

Business Insider (businessinsider.com)

Huffington Post (huffpost.com)

The Wall Street Journal (wsj.com)

Bloomberg (bloomberg.com)

The Guardian (theguardian.com)

Reuters, pronounced Roy-Ters (reuters.com)

The Hill (thehill.com)

Associated Press (apnews.com)

The Atlantic (<https://www.theatlantic.com/>)

Policymaking Think Tanks

Brookings Institution (brookings.edu)

Columbia University (bit.ly/Pl8ev)

Heritage Foundation (heritage.org)

Hoover Institution at Stanford (hoover.org)

Harvard Kennedy School
(bit.ly/5xj5hR)

National Center for Policy Analysis (ncpa.org)

Center for Strategic and International Studies
(csis.org)

Think Tank Bank (think-bank.org)

Progressive Policy Institute (ppionline.org)

American Civil Liberties Union (aclu.org)

Pew Research Center
(pewresearch.org)

Rand Corporation (reports, research briefs)
(rand.org)

Carnegie Endowment for International Peace
(carnegieendowment.org)

American Enterprise Institute (aei.org)

Cato Institute (cato.org)

Council on Foreign Relations (cfr.org)

Government Agencies/Information

Federal Government Portal (usa.gov)	Open Congress: Issues (openCongress.org/issues)	Executive Branch Agencies (1.usa.gov/Erff)
Congressional Budget Office (cbo.gov)		Federal Reserve System (federalreserve.gov)
Congressional Legislation (Congress.gov)	Congressional Research Service (zfacts.com/p/576.html)	Government Accountability Office (gao.gov)
Independent Legislation Tracking (govtrack.us/Congress/legislation.xpd)	Air University's CRS Report Collection (1.usa.gov/QfsH5y)	Social Security Administration (ssa.gov)
		U.S. Courts (uscourts.gov)
Department of State Country Pages (state.gov/misc/list)	Library of Congress Country Studies (1.usa.gov/8GdxS)	Constitutional Law (Law Library of Congress) (1.usa.gov/OBsd9f)

You can sometimes just google the topic when looking for evidence and pick on the reliable sources in the search results. If you aren't finding useful information, google the topic and attach "New York Times" or "Washington Post" at the end of your query to get reliable sources. The following sources are a great place to start when writing legislation or researching issues for speeches

- Our results indicate that, while the Uber relationship may have other drawbacks, Uber drivers benefit significantly from real-time flexibility, earning more than twice the

Evidence Dumps!

surplus they would in less flexible arrangements. If required to supply labor inflexibly at prevailing wages, they would also reduce the hours they supply by more than two-thirds

[NYT](#) May 2019

- The **labor costs** of companies like Uber and Lyft would probably **rise 20 to 30 percent**, according to industry estimates, if regulators or courts forced them to treat drivers as employees. Both **businesses have seen their stock prices fall** after recent public offerings amid questions about their financial prospects.
- Uber lost nearly \$2 billion last year, and Lyft lost nearly \$1 billion
 - **Destroying business even before regulations in place / shows the trajectory of th gig economy when put into the context of conventional business practices**
- The companies appear to be walking a delicate line: Investors and analysts have suggested that the **businesses might have to slash their labor costs to become profitable**. Drivers frequently complain that pay is already unacceptably low

[Heritage](#) (same article as above)

- Economists find that employees pay for benefits and payroll taxes through lower wages. When companies must pay more for benefits or payroll taxes, they reduce employees' wages by a nearly or entirely offsetting amount.

The Impact

The final piece of any soundly constructed argument is the impact—the reason why the argument should matter to the audience. Without an impact, an argument is meaningless in a debate round; the speaker may be making a true argument, but the audience will not assign it any value.

Like a claim or a warrant, the impact should be introduced with specific language. A few ways to introduce impacts are

- “This is important because”
- “This supports my point that.”

Such language lets the audience know that the logical flow of the argument is complete and that the speaker is now performing a distinct task, which is evaluating the weight of the argument in the context of the round.

How do I know what the impact of my argument is ?

If the claim established that the resolution will “stimulate the economy,” then the impact should establish the specific and tangible benefits of economic growth. Impacts should begin by focusing on concrete, realworld effects (positive or negative) and should always end by relating the argument back to its purpose: affirming or negating a resolution or piece of legislation -- we will dive deeper into impacts throughout the year!

Basic Argument

The core components of a complete argument—claims, warrants, data, and impacts—can and often do stand on their own. Debaters could make a series of four-sentence arguments, providing each piece of each argument in turn, but this would make for choppy and somewhat superficial debate.

Reference the *Samples* folder for more arguments.

Example of Each Element of an Argument

Claim	Legalizing marijuana will increase government revenues.
Warrant	Governments can place taxes on legalized marijuana.
Data	<i>Business Week</i> , March 29, 2009—Legalized marijuana, if sold in stores at the same prices as sold on the street, would yield \$40 to \$100 billion in new tax revenue.
Impact	In a country where both federal and state governments run massive deficits, and where programs from welfare to education are being cut across the board, we need to do whatever we can to increase revenue streams.

Argument Construction Contd.

If an argument has two distinct impacts, for example, then the speaker should indicate that when introducing the impacts: **“This argument is important for two reasons.”** You need to be especially clear about labeling and explaining his choices. This not only helps the speaker stay on track and prevents rambling, it also gives the audience additional support in their effort to follow along with the argument.

If an argument has two distinct warrants, for example:

Argument: Economic development leads to increased emissions

Warrant 1: Economic dev (A) leads to industrialization (B), Warrant 2: (B) Industrialization leads to increased emissions (C)

Remember, always connect your argument with the bill. HOW the bill makes what you are arguing happen. You can do that many ways. In the warrant for ex.

This is because under Section 1 of this legislation... [continue w/warrant]

^^Can be used to extend arguments if another debater makes your argument before you.

Mastering Arguments Pt. 1

Much of the debate in Congress revolves around stock arguments, which are commonly used arguments with well-established reasoning and claims. While stock arguments provide a solid foundation, standing out requires to approaches: **developing unique arguments and finding nuance within the stock arguments**. Let's take a look:

Take the example of the minimum wage debate. While many claim raising the minimum wage leads to job losses, examine the different warrants or underlying reasoning behind these claims.

Some argue that job losses occur because **"employers won't have enough money to pay everyone,"** while others claim it is due to **"employers switching to automation."** By identifying these distinct warrants, you can delve deeper into the specific mechanisms and potential impacts, opening up avenues for nuanced debate.

There are many different ways you can make the argument that raising the minimum wage will cause job loss, and it is your job to identify them and incorporate them into your argument.

Mastering Arguments Pt. 2

To set yourself apart, explore and develop unique arguments that offer fresh perspectives on the issue. Look beyond the typical lines of reasoning and consider alternative viewpoints or overlooked aspects of the topic.

- Explore and develop unique arguments that offer fresh perspectives on the issue. For example:
 - We're debating TOC finals legislation to make Puerto Rico a quasi-state of the US. You make a technical neg about the legislation actually does nothing at all if you look at the legal code it references.
 - We're debating to have a free trade agreement with India at NCFL finals. You give a neg and say that India will refuse the agreement so the debate is pointless.

Uniqueness can captivate judges and make your arguments memorable

Activity: Mistake #1 (Minimum Wage)

C: This bill will lead to greater unemployment

W: Higher minimum wage requires small businesses to spend more capital

E: “My small business constantly feels like it’s struggling because we don’t have enough capital. A higher minimum wage would require me to spend even more of it.” – Deb Ater, Small Business Owner

L: A higher minimum wage means that small businesses will struggle even more, because they’ll be forced to spend their limited capital

I: More small businesses will have to struggle

Activity: Mistake #2 (Minimum Wage)

C: This bill will lead to greater unemployment

W: Higher minimum wage requires small businesses to spend more capital

E: “A higher minimum wage could cause small businesses to lay off workers, because of the higher amount of profit that small businesses owners would have to give up. This could stop several small business owners from growing their businesses.” **New York Times**

L: Small business owners would have to spend more of their limited cash, which is bad for business

I: Small businesses stop growing

Fixing the Mistake

Minimum Wage: Unemployment

C: This bill will lead to greater unemployment

W: A higher minimum wage requires small business owners to spend more capital, of which they already have limited

E: 30% of small businesses fail because they run out of capital. This number increases to 50% in a small business's 5th year of business **Forbes 2018**

L: Small business owners already struggle with a lack of capital. When you force small businesses who are already struggling with capital problems, and essentially double their expenses by doubling the minimum wage, they only have two options: cut their number of employees, or shut down entirely. Either case results in job loss, which is why

E: Raising the minimum wage would cause 1.4 million job loss by 2025 **CNBC 2021**

I: Congress always prided itself on looking out for the little guy. But if we pass, the affirmation's attempt to help lift workers out of low paying jobs will only result in them being placed even further in the trenches of poverty